

Andhra Pradesh Prohibition of Ragging in All Educational Institutions Rules, 2002

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State of Andhra Pradesh - Act

Andhra Pradesh Prohibition of Ragging in All Educational Institutions Rules, 2002

ANDHRA PRADESH

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Andhra Pradesh Prohibition of Ragging in All Educational Institutions Rules, 2002

Rule ANDHRA-PRADESH-PROHIBITION-OF-RAGGING-IN-ALL-EDUCATIONAL-INSTITUTIONS-RULES-2002 of 2002

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Andhra Pradesh Prohibition of Ragging in All Educational Institutions Rules, 2002

G.O.Ms.No. 67, Higher Education (EC) dated 31.8.2002

Published in Andhra Pradesh Gazette, R.S. to Part I, Extraordinary No. 44, dated 4-9-2002.

In exercise of the powers conferred by sub-section (1) of Section 9 of the Andhra Pradesh Prohibition of Ragging Act, 1997 (Andhra Pradesh Act 26 of 1997

) the Governor of Andhra Pradesh hereby makes the following rules relating to Prohibition of Ragging in all Educational Institutions in the State.

1.

Short title:

- These rules may be called the Andhra Pradesh Prohibition of Ragging in all Educational Institutions Rules, 2002.

2.

Definition:

- In these rules unless the context otherwise requires: -

(a)

"act" includes words either spoken or written or signs or sounds or gestures or visible representation.

(b)

"educational Institutions" means and include a College or other institution by whatever name called, carrying on the activity or imparting Education therein (either exclusively or among other activities) and includes an orphanage or boarding home or hostel or Tutorial Institution or other premises attached thereto.

(c)

"government" means the State Government of Andhra Pradesh.

(d)

"notification" means notification published in Andhra Pradesh Gazette and the word "notified" shall be construed accordingly.

(e)

"ragging" means doing an act which causes or is likely to cause insult or annoyance of fear or apprehension or threat or intimidation or outrage of modesty or injury to a student.

(f)

"student" means a person who is admitted into an Educational Institution and whose name is lawfully borne on the attendance register thereof.

3.

Prohibition of ragging:

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(a)

ragging is prohibited within or outside of any educational institution in the State.

(b)

the Principal/Head of the institution shall obtain an undertaking in writing from the students/parents at the time of admission that they shall not resort to ragging inside or outside the institution.

(c)

full publicity should be given to the punishment for ragging through open circulars, suitable posters, colleges and hostel premises etc., by the Principal/Head of the institutions.

(d)

the Principal/Head of the institution shall constitute anti ragging squads involving teachers and students to prevent ragging.

(e)

the Head of the Institution shall lodge a criminal case against students resorted to ragging for taking action as mentioned in Andhra Pradesh Prohibition of Ragging Act, 1997 (Andhra Pradesh Act

26 of 1997

).

Certain of the guidelines to prevent ragging in educational institutions are illustrated in the annexure to these rules.

4.

Responsibility of the Head of the Institution:

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(1)

At the commencement of the Academic session, the Institution should constitute a proctorial committee consisting of senior faculty members and hostel authorities like the warden and a few responsible senior students:

(i)

to keep a continuous watch and vigil over ragging so as to prevent its occurrence and recurrence.

(ii)

to promptly deal with the incidents of ragging brought to its notice and summarily punish the guilty either by itself or by putting-forth its finding/recommendation/suggestions before the authority competent to take decision. All vulnerable locations shall be identified and specially watched.

(2)

The local community and the students in particular must be made aware of dehumanising effect of ragging inherent in its perversity. Posters, notice boards and sign-boards wherever necessary, may be used for the purpose.

(3)

Failure to prevent ragging shall be construed as an act of negligence in maintaining discipline in the institution on the part of the management, the Principal and the persons in authority of the institution. Similar responsibility shall be liable to be fixed on hostel wardens/superintendents.

(4)

Whenever any student complains of ragging to the Head of the Educational Institution such head or manager shall enquire into the same forthwith and if the complaint is prima facie found true, shall suspend the student or students complained against for such period as may be deemed necessary.

(5)

The decision of the head of the institution or the person responsible for the Management of the educational institution is final.

(6)

If an institution fails to curb ragging, the Funding Agency shall consider for stoppage of financial assistance to such an institution till such time as achieves the same. The University shall consider disaffiliating a college or institution failing to curb ragging. All Universities shall bring these guidelines to the notice of all educational institutions under their control and jurisdiction. Publicity may also be given by press notes in public interest by Universities.

5.

Penalty for ragging:

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(1)

Whoever with the intention of causing ragging or with the knowledge that he is likely by such act to cause ragging commits or abets ragging shall be punishable as per Andhra Pradesh Prohibition of Ragging Act, 1997 (Act 26 of 1997

).

(2)

The students convicted of an offence under Section 4 of the Andhra Pradesh Prohibition of Ragging Act, 1997 (Act 26 of 1997

) and punished with imprisonment for a term shall be dismissed from the educational institution.

(3)

The student convicted of an offence under Section 4 of Andhra Pradesh Prohibition of Ragging Act, 1997 and punished with imprisonment for a term of more than six months shall not be admitted in any other educational institution.

(4)

Any student dismissed from a college for ragging should be debarred from seeking admission in any other course of study in any college/University located in the State.

(5)

In case of the students who involved in ragging, there shall be an embossment on his marks cards and other academic Certificate in bold letters which cannot be obliterated that he had indulged in ragging and had conducted himself in a manner unbecoming of a student.

Guidelines Annexure to G.O.Ms.No.67, Higher Education (EC-2) Department, dated 31.8.2002

The following guidelines shall be complied with while endeavouring to deal with ragging in the forms like addressing seniors 'Sir' performing mass drills, copying class notes for the seniors, carrying out various errands, and doing menial jobs for the seniors, washing clothes demanded by senior students, asking/answering vulgar questions, looking at pornographic pictures to shock the freshers out of their innocence, being forced to drink alcohol, scalding tea, being forced to do acts with sexual overtones and homosexual acts leading to physical injury/mental torture or death, and

doing obscenities.

"Ragging" means any disorderly conduct whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness any other student, indulging in rowdy or indisciplined activities which causes or is likely to cause annoyance, hardship or psychological harm or to raise fear or apprehension thereof in a fresher or junior student or asking the students to do any act or perform something which such student will not do in the ordinary course and which has the effect of causing or generating a sense of shame or embarrassment so as to adversely affect the physique or psyche of a fresher or junior student. The cause of indulging in ragging is deriving a sadistic pleasure or showing of power, authority or superiority by the seniors over their juniors or freshers.

Most of the above orders of the seniors constituting perverse actions are illustrative or ragging but not exhaustive. Any other related acts would also form ragging attracting severe punitive action.

1. A review committee shall be constituted by the District Collector as Chairman and the composition of the committee will be as follows:

- (i)
Collector - Chairman
- (ii)
Superintendent of Police - Vice-Chairman
- (iii)
 - (a)
Revenue Divisional Officers
 - (b)
Sub-Divisional Police Officers - Members
 - (c)
College Principals

The committee shall meet twice before the academic session and twice during the academic session to review the prevalent situation and evolve effective measures to combat ragging.

2. Apart from the review committee the educational institutions should provide for the constitution of a committee consisting of the parents and guardians of the students taking education in their institute, as well as two representatives of the students union, if any, apart from the principal and a representative of teaching staff of the educational institute and to review the same by regularly calling a meeting of the committee of the parents etc., which may be constituted for this purpose. The committee should recommend to the management whether any step is required to be taken against any student who may have violated the code of conduct and the school management should take necessary remedial measures as expeditiously as possible, but not later than four weeks from the date of the recommendation by the parents committee.

3. The application form for admission/enrolment shall have a printed undertaking to be filled up and signed by the candidates to the effect that he/she is aware of the institution's approach towards ragging and punishments to which he or she shall be liable if found guilty of ragging. A similar undertaking shall be obtained from the parents/guardian of the applicant.

4. Any boy or girl student should keep the identity card issued by the concerned educational institution in his/her possession and offer the same for verification as and when demanded by any authority of the institution or hostel or any member of the staff of the institution or hostel who is authorised to verify the identity of the concerned student.

5. The Hostels and Messes, vacant class rooms, canteen, stadium or playground, students activity centres and bus stands are the some of the vulnerable locations identified for ragging. Strict surveillance should be maintained in such locations for prevention of ragging.

6.

The Management, Principal, the teaching staff should interact with freshers and take them in confidence by apprising them of their rights as well as obligation to fight against ragging and to generate confidence in their mind that any instances of ragging to which they are subjected or which comes in their knowledge should forthwith be brought to their knowledge and shall promptly be dealt with, while protecting the complainants from any harassment by perpetrators of ragging. It would be better if the head of the institution or person high in authority addresses meeting of teachers, parents and students collectively or in groups, in this behalf.

7.

The Universities and the institution shall at a reasonable time before the commencement of an academic year, and therefore at such frequent intervals as may be expedient, deliberate over and devise such positive and constructive activities to be arranged by involving the students generally so that the seniors and juniors, and the existing students and the freshers, interact with each other in a healthy atmosphere and develop a friendly relationship so as to behave like members of a family in an institution. Seniors or juniors should be encouraged to exhibit their talents in such events so as to shed their complexes.

8.

Telephone numbers of the Principals, Vice-Principals, Head of Departments, senior faculty/administrative officers, Wardens and Deputy Wardens, should be given to every new entrant with, the advice that they should not hesitate in reporting all incidents of ragging through these numbers even anonymously with the circumstances warrant, so that immediate measures can be taken by them.

9.

The media may be requested to give adequate publicity to the negative aspects of ragging mainly during the months of July and August every year so that public awareness and aversion can be built up against ragging.

10.

The 1st year class schedule shall be staggered. Junior students should come to the college early and to leave first. The schedule should be reverse for senior students classes.

11.

Teachers taking the 1st year classes will leave the class at the end of the period only after the next teacher arrives.

12.

The hostels/accommodations where freshers are accommodated shall be carefully guarded, if necessary by posting security personnel, and placed in charge of a warden/Superintendent who should himself/herself reside thereat, and wherein the entry of seniors and outsiders shall be prohibited after specified hour of night and before except under the permission of the person in-charge. Entry at other times may also be regulated. If possible, the new entrants to the hostels should be accommodated in a separate building away from other hostel buildings where the senior students reside.

13.

No person who is not a student of the concerned educational institution shall be allowed to enter the premises of that educational institutions or its hostel without obtaining prior permission of the Principal of that institute. Provided that the parents or the guardian of the students shall not be required to take such permission in writing.

14.

No person who is not studying in the given educational institution shall be allowed to enter any hostel of boys or girls attached to the concerned educational institution. However, by obtaining prior written permission of the warden of the hostel, he may be so allowed. Provided, however, that in case of girls hostel, no male student or any male person shall have any access to a girl inmate of the hostel except in the presence of the Care taker of the ladies hostel apart from obtaining advance permission of the Warden for the purpose.

15.

Any girl inmate of the hostel who has gone out of the hostel premises for a personal errand shall return to the hostel latest by 9.00 p.m. If she is delayed, she should render written explanation there and then to the Care taker of the hostel who shall allow her to enter the hostel. occupy her seat in the room allotted to her on such written explanation submitted by her. The written explanation so submitted shall be forwarded to the Warden of the hostel by the Care taker as soon as possible but not later than 9.00 a.m. on the next day.

16.

Teaching staff and warden will be at liberty to check and inspect the hostel area at any time during night.

17.

Secret student vigilance groups shall be formed. They are expected to bring to the attention of the Anti-ragging committee any incident of ragging in the college or outside.

18.

Confidential boxes should be installed at college to receive the complaints of the Junior students to know about ragging incidents, if any.

19.

Migration certificates issued by the institution should have an entry apart from that of general conduct and behaviour whether the student had participated in and in particular was punished for ragging.

20.

Ragging can be stopped by creating awareness amongst the students, teachers and parents that ragging is a reprehensible act which does no good to any one and by simultaneously generating an atmosphere of discipline by sending a clear message that no act of ragging shall not go unnoticed and unpunished.

21.

Any student found to be indulging into any ragging activity shall be suspended immediately after communication is sent to him under the signature of the Principal of the concerned educational institution stating that he is alleged of indulging into ragging activity. Such student shall be debarred from entering the campus of the educational institution or its hostel, except on any day at any time when he called upon by the authority of the school or by the Parents committee for tendering explanation or for defending his case.

22.

Anti-ragging movement should be initiated by the institution right from the time of advertisement for admission. The prospectus, the form for admission must clearly mention that ragging is banned in the institution and any one indulging in ragging is likely to be punished appropriately which punishment may include expulsion from the institution, suspension from the institution or classes for a limited period or fine with a public apology. The punishment may also be take the shape of:

(i)

withholding scholarships/fellowships.

(ii)

debarring from representation in events.

(iii)

withholding results.

(iv)

withdrawing benefits like travel concessions and campus selections.

(v)

suspension or expulsion from hostel or mess, and the like.

23.

Photographs of students who have been involved in ragging and against when prima facie cases are made out shall be published in the notice board put up in a conspicuous place, and also published in local Newspapers. In addition, students should be cautioned that the moment they indulge in ragging they would have a bleak future in as much as they would not be entitled to get a passport or visa to go abroad, if a case is registered in the police station or if their academic records are tainted with black marks.

24.

If the commission of offence is so serious they may be restrained from participating in national and international meets, tournaments, youth festivals, quizzes and so on.

25.

Failure to prevent ragging shall be construed as act of negligence in maintaining discipline in the institution on the part of the management, the Principal and the persons in authority of the institution. Similar responsibility shall be liable to be fixed on hostel Warden/Superintendents.

26.

Incentives and rewards shall be given for those who actively participate in measures for curbing the menace of ragging. Punishment for the offenders should be balanced by some incentives for non-offenders and those who help check the menace of ragging.

27.

The offence of the ragging is not only punishable under Section 4 of Andhra Pradesh Prohibition of Ragging Act, 1997 but also under various provisions as envisaged in the relevant section of the Indian Penal Code, 1860 (Act 45 of 1860) and as per the specific directions to be given to the police officers for taking cognizance of such offences and criminal activities given by the authorities of the Police Department given from time to time.

28.

Ragging is cognizable offence. The same may be reported to the police. However, the police should be called in or allowed entry in the campus at the instance of the head of the institution or the person in charge. The police also deal with such incidents when brought to its notice for action by keeping in mind that they are dealing with students, but not as criminals. The action of the Police should never be violent and always be guided by correctional attitude.

29.

The above guidelines are only illustrative and are not intended to come in the way of institutions and authorities devising ways and means to curb the ragging.

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